

Osgoode Hall Law School
Public & Constitutional Law
LW1800 – Section B
Fall Assignment
Prof. Glover Berger

1. **Nature of the assignment:** This assignment asks you to provide feedback on the work of a fictional student whose submission was generated by GenAI. Your feedback should comment on the strengths and weaknesses of the student's answer. Specifically, your feedback should address two features of the student's work: (1) the accuracy of the legal claims made and (2) the quality of the reasoning (e.g. structure of analysis, clarity, organization, persuasiveness, completeness, use of authorities, etc).

When you identify an error of law in the answer, your feedback should correct the mistake. When you identify a weakness in the reasoning, your feedback should tell or show the student how to strengthen it.

2. **Coverage:** This is not a research assignment. It is designed to give you the opportunity to apply and engage with material covered (in class and/or in the course materials) in the section of the course on "Sources, Foundations, and Institutions of Public & Constitutional Law". It does not cover—and you should not rely on or cite—material studied in other parts of the course or outside of our course material.
3. **Deadline & Submission:** This assignment is due on **October 9th, 2026 at 9:30 am**. Submit your assignment through the Osgoode Dropbox. This assignment will be graded anonymously. Do not include your name or other identifying information on the assignment. **USE your "A" Assignment Number.**
4. **Format:** You can submit your assignment in writing or as an audio recording.
 - a. **Written assignments: must not exceed 1000 words.** This is a strict word limit. You may choose the format of your written feedback. Options include: providing the student with a model answer to the exam question; writing a feedback memo addressed to the student; offering feedback through track changes and comments inserted into the student's answer; a combination of formats; or some other appropriate written form. Regardless of the format you choose, the total number of words that you offer as feedback (including footnotes, references, etc) must comply with the 1000-word limit. **Your assignment must include a word count.** There are no other formatting requirements for the assignment -- choose what is best for the format you have chosen for your feedback.
 - b. **Audio Assignments: must not exceed 8 minutes, 0 seconds total (i.e. 8 mins30secs exceeds the limit).**

5. **Citations/References to authorities:** You must support your legal claims and analysis with reference to authorities and indicate the source of ideas on which you are relying that are not your own. In light of the word count and time limits, formal citations are not necessary in either written or audio submissions. Shortforms for case names, statutes, parts of the Constitution, the textbook, and lectures are expected, and indeed encouraged because of the strict word count. These citations can be inserted in brackets at the end of a sentence; worked into the text/oral feedback; or incorporated in your assignment in some other way. The overarching rule is that the authority (and the pinpoint paragraph, constitutional provision, date of lecture, textbook page, etc if applicable) that supports your claim must be clear to the reader. If referencing the *Constitution Act, 1867* and/or the *Constitution Act, 1982*, feel free to use the short forms “CA1867” and “CA1982”. For class lectures, feel free to use “KB, Sept 25”.
6. **Late Policy:** Assignments that are submitted late without a pre-approved accommodation or extension are subject to application of a penalty of 2 marks for each 24-hour period (or part thereof) that the assignment is late.
7. **Submissions that exceed the word or time limit:** Assignments that exceed the word or time limit are subject to application of a penalty of at least 1 mark and up to 7.5 marks, depending on the instructor’s assessment of the extent of the breach.
8. **Academic Integrity:** This assignment is to be completed independently, and all work submitted must be yours and yours alone. As with all work submitted at Osgoode, your work on this assignment must be consistent with the governing policies on academic integrity, honesty, and conduct.
9. **Policy on the Use of AI:** The “Instructor’s Policy on the Use of AI”, as set out in the syllabus for this course, applies to all assessments in this course, including this assignment. By submitting your assignment to the Osgoode dropbox, you are confirming that you complied with the terms of all applicable policies.
10. **Assessment:** This assignment is worth 15% of your final grade in this course. It will be assessed according to the attached marking rubric.
11. **A note on duration of the assignment:** This assignment replicates the kind of assessment that I would assign to be completed during class time. I have not altered the nature, content or length of the assignment despite extending the duration of the assignment period. You have four days to complete this assignment instead of the usual two or three hour window of an in-class assessment. This does not mean you should spend four days working on this assignment. **Indeed, you should not spend that much time and excellent performance on the assignment does not require it.** Rather, I hope that the longer window of time will simply offer you the opportunity to slow down the process of reading and reflection and to engage in analysis and writing without the pressure of a short timeline.

Marking Rubric

Your assignment is worth 15 marks and will be assessed according to the rubric below.

NOTE: This is the marking rubric that will be used to mark your (Osgoode student in Section B Public & Constitutional Law) assignment. It is **not** the rubric that you should use to provide feedback to the fictional student whose answer is set out above.

Quality of feedback on the accuracy of the legal claims made (6 marks)					
This criterion assesses your ability to identify strengths and weaknesses in the fictional student’s knowledge and use of the law. In this context, weaknesses include errors, misrepresentations, incomplete statements, inaccuracies, and so on. In addition, this criterion assesses your ability to suggest revisions that would correct and/or strengthen the weaknesses in the student’s knowledge and use of the law.					
1	2	3/3.5	4.5	5	6
Effectively no analysis provided	Below minimum expectations	Meets minimum expectations	Good	Very good	Could not be better
Quality of feedback on the student’s reasoning (6 marks)					
This criterion assesses your ability to identify strengths and weaknesses in the fictional student’s reasoning. The relevant features of the student’s reasoning include its structure, clarity, organization, persuasiveness, completeness, and so on. In addition, this criterion assesses your ability to suggest revisions that would meaningfully strengthen the weaknesses you have identified.					
1	2	3/3.5	4.5	5	6
Effectively no analysis provided	Below minimum expectations	Meets minimum expectations	Good	Very good	Could not be better
Judgment demonstrated in feedback (3 marks)					
This criterion assesses your ability to exercise good judgment when selecting and prioritizing your feedback. Strong feedback identifies and focuses on what matters most in the fictional student’s answer, taking account of the relative significance of the issues. It avoids devoting disproportionate attention to minor or relatively inconsequential points.					
1	2		3		
Poor judgment shown	Good judgment shown		Excellent judgment shown		

Additional Comments